

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

COOL LIVING LLC, *Complainant*

v.

ALPI U.S.A., INC. AND ALPI AIR & SEA A/S, *Respondents.*

DOCKET NO. 25-28

Served: June 8, 2026

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge.*

ORDER ON MOTION TO WITHDRAW

This matter came on for consideration of Motion to Withdraw filed June 4, 2027, by Holland & Knight LLP, Christopher R. Nolan, and Ashleigh T. Higgs (collectively, the “Firm”) seeking to withdraw as counsel for Complainant, Cool Living LLC (“Cool Living” or Complainant). (Dkt. 20.) The Firm asserts in the body of the motion that Respondent’s counsel advised after meeting and conferring that it does not oppose the motion. For the reasons set forth below, the motion is **GRANTED IN PART AND DENIED IN PART** subject to the conditions set forth herein.

In support of its motion, the Firm states, *inter alia*, that:

- 1) Despite efforts to address strategic differences of opinion, irreconcilable differences have arisen between the Firm and Cool Living that materially impact the attorney-client relationship and make the Firm unable to continue its representation;
- 2) The Firm and Cool Living are in dispute as to whether Cool Living has failed to perform its obligations to the Firm;
- 3) The Firm is also filing a motion to withdraw as counsel in the parallel state court proceeding, ALPI U.S.A., INC. et al v. COOL LIVING OY et al, 655504/2025;
- 4) Withdrawal can be accomplished without material adverse effect on the interests of the client in that there are no pending motions, discovery obligations have been satisfied, no outstanding discovery demands are pending and no notices of deposition issued, although ALPI advised that it will seek one deposition of Cool Living and Cool Living has recently indicated it will pursue depositions;
- 5) Cool Living has been given reasonable warning that the Firm will be withdrawing as counsel, and Cool Living indicates that it is seeking substitute counsel;

6) Withdrawal can be accomplished without material adverse effect on the interest of Cool Living or any other party to this litigation. The parties have until June 13, 2026, to conduct discovery, and briefing is not due until July 13, 2026. The Firm has further agreed to take all reasonable steps to facilitate a smooth and efficient transition of its file to substitute counsel or Cool Living;

7) In the interim, all filings shall be sent to Cool Living via mail and email at its last known address: Cool Living LLC, 8 The Green, Suite R, Dover, Delaware 19901, with emails to Tony Hopkins email address (tony@thatcooliving.com) and Anna Farkas email address (anna@thatcooliving.com).

With respect to the applicable legal standard, 46 C.F.R. § 502.23(e) provides that:

If an attorney wishes to withdraw from representing a party, and written consent is not obtained, or if the party is not otherwise represented, the withdrawing attorney shall file an appropriate motion seeking permission to withdraw and provide appropriate reasons for making the motion. Such motion will be decided in consideration of the factors and standards set forth in Rule 1.16 of the American Bar Association's ["ABA"] Model Rules of Professional Conduct ["MRPC"] and by the courts.

MRPC Rules 1.16(b), (c), and (d) provide:

(b) Except as stated in paragraph (c), a lawyer may withdraw from representing a client if:

- (1) withdrawal can be accomplished without material adverse effect on the interests of the client;
- (2) the client persists in a course of action involving the lawyer's services that the lawyer reasonably believes is criminal or fraudulent;
- (3) the client has used the lawyer's services to perpetrate a crime or fraud;
- (4) the client insists upon taking action that the lawyer considers repugnant or with which the lawyer has a fundamental disagreement;
- (5) the client fails substantially to fulfill an obligation to the lawyer regarding the lawyer's services and has been given reasonable warning that the lawyer will withdraw unless the obligation is fulfilled;
- (6) the representation will result in an unreasonable financial burden on the lawyer or has been rendered unreasonably difficult by the client; or
- (7) other good cause for withdrawal exists.

(c) A lawyer must comply with applicable law requiring notice to or permission of a tribunal when terminating a representation. When ordered to do so by a tribunal, a lawyer shall continue representation notwithstanding good cause for terminating the representation.

(d) Upon termination of representation, a lawyer shall take steps to the extent reasonably practicable to protect a client's interests, such as giving reasonable notice to the client, allowing time for employment of other counsel, surrendering papers and property to which the client is entitled and refunding any advance payment of fee or expense that has not been earned or incurred. The lawyer may retain papers relating to the client to the extent permitted by other law.

Based on the Firm's representation that irreconcilable differences have arisen between the Firm and Cool Living that materially impact the attorney-client relationship and make the Firm unable to continue its representation, I find that good cause to withdraw exists in accordance with 46 C.F.R. § 502.23(e) and MRPC 1.16(b)(7). At the same time, in light of the Firm's representation that Respondents contemplate taking one deposition not noticed at the time the motion was filed, and considering that the discovery deadline remains open through June 13, 2026, I find that withdrawal on or before June 13, 2026, cannot be accomplished without material adverse impact on the client as required by MRPC 1.16(b)(1). For this reason, I find good cause has been established for the Firm to withdraw effective June 14, 2026, but that the Firm is required to represent Complainant at any deposition conducted on or before the discovery deadline of June 13, 2026.

According, it is **ORDERED** that the Firm's motion to withdraw is **GRANTED IN PART AND DENIED IN PART** subject to the conditions set forth herein and is not effective until **June 14, 2026**. The firm shall represent Complainant at any deposition conducted on or before the discovery deadline of **June 13, 2026**; It is

FURTHER ORDERED that for all communications occurring through June 13, 2026, the Firm shall remain counsel of record and be noticed accordingly; it is

FURTHER ORDERED that for all communications occurring on or after June 14, 2026, all communications and notices shall be transmitted to Cool Living via mail and email at its last known address: Cool Living LLC, 8 The Green, Suite R, Dover, Delaware 19901, with emails to Tony Hopkins email address (tony@thatcooliving.com) and Anna Farkas email address (anna@thatcooliving.com); It is

FURTHER ORDERED that the Firm shall advise Complainant that it is required to comply with the deadlines set forth in the March 2, 2026, Order Granting Joint Motion for Extension of Time (Dkt. 16), including but not limited to the June 13, 2026, deadline to complete discovery, and that substitution of new counsel is not automatic grounds for further extension absent a showing of good cause; It is

FURTHER ORDERED that the Firm advise Complainant of its duty to secure substitute counsel as soon as possible.

MARY A. HERVEY -S

Digitally signed by MARY A.
HERVEY -S
Date: 2026.06.08 10:15:34 -04'00'

Mary Apostolakos Hervey
Administrative Law Judge